

Court No. - 32

Case :- WRIT - C No. - 17484 of 2022

Petitioner :- Pradeep Kumar Yadav

Respondent :- State Of U.P. And 4 Others

Counsel for Petitioner :- R.K.Paramhans Singh

Counsel for Respondent :- C.S.C.,Chetan Chatterjee

Hon'ble Mrs. Sunita Agarwal,J.

Hon'ble Vikram D. Chauhan,J.

The petitioner herein is challenging the recovery certificate dated 02.08.2021 whereby the electricity dues are sought to be recovered.

It is contended by the learned counsel for the petitioner that before making final assessment no provisional assessment was served upon the petitioner. The petitioner is also not aware of any final assessment made prior to the recovery.

Be that as it may, as the petitioner has a remedy to assert his grievance before the respondent no.4, the present petition is being **disposed of** with the observation that the petitioner shall make a proper application in accordance with the provisions of Clause 8.1 of the U.P. Electricity Supply Code 2005 before the Executive Engineer concerned namely respondent no.4 within a period of two weeks along with the copy of this order.

In case such an application is filed, the respondent no.4 shall be under obligation to take an expeditious decision in accordance with law by passing a reasoned and speaking order, preferably, within a period of four weeks, thereafter.

For a period of six weeks or till the fresh decision is taken by the Executive Engineer concerned, no coercive action shall be taken against the petitioner pursuant to the recovery certificate under challenge.

Order Date :- 22.6.2022

Harshita